

Regarding lifting the restrictions on recruitment for filling up vacant posts in teaching and non-teaching cadres in aided special schools for persons with disabilities, attached hostels, workshops (training centers), and children's homes for orphans and intellectually disabled persons in the State.

Government of Maharashtra

Department of Persons with Disabilities Welfare

Government Resolution No.: Petition-2021/ C.R.13/ D.W.1

31, 32, 35 A, Mittal Tower, A-Wing, 3rd Floor,
Barrister Rajni Patel Marg, Nariman Point, Mumbai-400 021.
Date :- 26th July, 2023.

Read :-

1. Order dated 28th October, 2021 in Writ Petition No. 132/2016 (Rajnish Kumar Pandey vs. Union of India and Others) before the Hon'ble Supreme Court.
2. Hon'ble State Human Rights Commission Suo Moto Case No.: 4213 / 13 / 16 / 2022.
3. Social Justice, Cultural Affairs, Sports and Special Assistance Department, Government Resolution No.: EDD-2003 / C.R. 340 / Part-3 / Reform-2, Dated 18th August, 2004.
4. Finance Department, Government Resolution No.: Arthsam-2020 / C.R. 65 / Arth-3, Dated 4th May, 2020.
5. Minutes of the meetings held on 18th January, 2023 and 20th March, 2023 of the Sub-Committee constituted vide Finance Department, Government Resolution No.: Padni-0617 / C.R. 20 / Apuk, Dated 9th June, 2017.
6. Finance Department, Government Resolution No.: Padni-2022 / C.R. 15 / A.Pu.K., Dated 27th April, 2022.

Preamble :-

As per the directions in Paragraph No. 59 of the judicial decision of the Hon'ble Supreme Court at reference No. 1 above, as well as in connection with the hearing on the Suo Moto Petition before the Hon'ble State Human Rights Commission, the matter of lifting the restrictions under Finance Department Government Resolution dated 4th May, 2020 and urgently filling through direct recruitment the vacant posts in teaching and non-teaching cadres in aided special schools for persons with disabilities, attached hostels and training centers (workshops), children's homes for orphans and intellectually disabled persons, attached special schools and attached workshops in the State was under consideration of the Government. Accordingly, the Government has taken the following decision.

Government Resolution :-

In accordance with the Finance Department's Government Resolution dated 10th September, 2001, the High-Level Secretary Committee was established. Prior to submitting proposals for newly creating posts, declaring posts lapsed, reviving lapsed posts, etc., in government, semi-government offices, as well as state-owned enterprises, boards, aided institutions, etc.

reviving lapsed posts, etc., it is necessary to submit the proposals for approval of the High-Level Secretary Committee on the recommendation of the Sub-Committee established vide Government Resolution dated 9th June, 2017. Accordingly, vide Meeting No. 1/2023 dated 18th January, 2023 of the said Sub-Committee, relaxation has been granted as follows from the restrictions of the Finance Department Government Resolution dated 4th May, 2020 for filling up vacant posts in teaching cadre in aided special schools for persons with disabilities, training centers (workshops), children's homes for orphans and intellectually disabled persons, attached special schools, and attached workshops in the State; and vide Meeting No. 3/2023 dated 20th March, 2023 for filling up vacant posts in teaching / non-teaching cadres in the aforesaid establishments:-

1) As per the instructions in the meeting of the Sub-Committee of the Finance Department dated 18th January, 2023, relaxation has been granted from the restrictions in the Finance Department Government Resolution dated 4th May, 2020 for filling up vacant posts in the teaching cadre admissible as per the staffing pattern of Government Resolution dated 18th August, 2004 in the aforesaid establishments.

2) Approval has been granted to fill a total of 508 vacant posts on a regular basis as shown in Table "A" below in non-teaching cadres in the aforesaid establishments, and pending finalization of the revised staffing pattern for the said aided special schools / workshops and attached hostels, to fill services/posts up to a total limit of 237 manpower through external agencies as shown in Table "B" below.

(A) Approved posts for recruitment

Sr. No.	Designation	Number of Posts Approved for Recruitment
1	Blindness-Mobility Orientation Instructor	04
2	Deaf-Mute/Speech Therapist	37
3	Intellectually Disabled-Psychologist/ Occupational Therapist/ Physiotherapist, Spastic	41
4	Orthopedically Handicapped-Physiotherapist/ Occupational Therapist	20
5	Hostel Superintendent/Warden, Nurse (for Intellectually Disabled Schools) 50% of total 113 vacant posts in this cadre	56
6	Caretaker	350
Total		508

(B) Services to be procured through external agency

Sr. No.	Service	Manpower
1	Honorarium Medical Officer and Rehabilitation Social Worker cum Employment Officer	134
2	Driver, Multi-Tasking Group-D Staff (Vehicle Attendant, Helper, Cleaner, Watchman, Peon) 50% out of 206 vacant posts	103
Total		237

Note - Care should be taken to comply with the provisions in the Finance Department's Government Resolution dated 27.04.2022 while procuring services through external agency.

2. Due to the relaxation of restrictions mentioned in 1 (1) above, approval has been received for the proposal to fill 1167 posts of teaching cadre of the department.

3. Action regarding recruitment for vacant teaching and non-teaching posts mentioned in points 1 and 2 above should be taken as follows:

A) Commissioner, Persons with Disabilities Welfare, Pune shall submit a category-wise consolidated proposal to the Department in the following format by 10th August, 2023.

Sr. No.	Name of the Institution	Name and Address of Aided School / Workshop / Children's Home etc.	As per Government Resolution dated 18th August, 2004 (Designation-wise)			Validity Period of Registration Certificate
			Sanctioned Posts	Filled Posts	Vacant Posts	
1	2	3	4 (a)	4 (b)	4 (c)	5

B) The Commissioner, Persons with Disabilities Welfare, Pune shall verify the proposals received for vacant posts as per recruitment rules, and at the Government level, issue No-Objection Certificates school/workshop-wise to the posts found eligible during verification by 31st August, 2023.

C) After receiving the No-Objection Certificate from the Government for filling vacant posts, it will be mandatory for the concerned competent authority and NGO management institution to complete the recruitment process within three months from the date of receiving the No-Objection Certificate, following the rules laid down by the Government for direct recruitment. Therefore, the Directorate and institutions should keep proper records of the date on which No-Objection Certificates were issued to institutions.

3. In case of any irregularity in the said recruitment process, the concerned NGO management institution shall be entirely responsible.

4. It shall be the responsibility of the Commissioner, Persons with Disabilities Welfare, Pune to submit a report to the Department within one month after the concerned institution completes the recruitment process for all approved eligible posts within the stipulated time.

5. This Government Resolution is being issued in accordance with the minutes of the third meeting of the year 2023 held on 20.03.2023 of the Sub-Committee constituted for thorough verification and recommendation of proposals regarding new post creation / revival of posts and review of posts, etc. along with Finance Department Letter No.: Padni-2023 / C.R. 16 / Apuk, dated 27th March, 2023, as well as granting approval for creation of shadow posts and filling vacant posts.

6. This Government Resolution is available on the website of the Government of Maharashtra www.maharashtra.gov.in and its Computer Code is 202307271230102535. This order is being issued with digital signature.

By order and in the name of the Governor of Maharashtra.

(V. P. Ghodke)

Deputy Secretary, Government of Maharashtra

Copy to:

1. Hon'ble Chief Minister, Private Secretary to.
2. Secretary (D.W.), Senior Personal Assistant to, Mantralaya, Mumbai.
3. Commissioner, Persons with Disabilities Welfare, Maharashtra State, Pune.
4. All Regional Deputy Commissioners, Social Welfare Department.
5. Assistant Commissioner, Mumbai City / Mumbai Suburban.
6. All District Social Welfare Officers, Zilla Parishads.
7. Principal Accountant General, Maharashtra 1/2 (Accounts and Entitlement/Audit), Maharashtra State, Mumbai/Nagpur.
8. Joint / Deputy Secretary, Finance Department / Planning Department, Mantralaya, Mumbai-400 032.
9. All District Treasury Officers.
10. Select File (Disability Welfare-1).

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